

25STCV03181 25STCV03181

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV03181

ROSA

VARGAS, AN INDIVIDUAL;, et al. vs WELCOMELAXMI LLC, A LIMITED LIABILITY
COMPANY;, et al.

August

24, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF ROSA VARGAS' MOTION TO COMPEL DISCOVERY RESPONSES TO FORM
INTERROGATORIES – EMPLOYMENT LAW AND FORM INTERROGATORIES - GENERAL, TO
DEFENDANT WELCOMELAXMI LLC, SET ONE; REQUEST FOR MONETARY SANCTIONS IN THE

AMOUNT OF \$1,310.00 AGAINST DEFENDANT WELCOMELAXMI LLC AND ITS COUNSEL. MOTION THEREOF TO COMPEL DISCOVERY RESPONSES

TO PLAINTIFF'S SPECIAL INTERROGATORIES TO DEFENDANT WELCOMELAXMI LLC, SET ONE; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,310.00 AGAINST DEFENDANT WELCOMELAXMI LLC AND ITS COUNSEL. MOTION THEREOF TO COMPEL DISCOVERY RESPONSES AND DOCUMENTS TO REQUEST FOR PRODUCTION OF DOCUMENTS TO DEFENDANT WELCOMELAXMI LLC, SET ONE; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,310.00 AGAINST DEFENDANT WELCOMELAXMI LLC AND ITS COUNSEL. MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,310.00 AGAINST DEFENDANT WELCOMELAXMI LLC AND ITS COUNSEL.

RULING:

The Court grants all three unopposed Motions and imposes sanctions as to admission responses.

On or before September 30, 2026, Defendant shall serve initial responses and produce documents, without objections, and in full compliance with the California Discovery Act (Code Civ. Proc. § 2016.010 et seq.), as to Plaintiff's Form Interrogatories (General and Employment), Special Interrogatories, and Requests for Production of Documents.

On or before that same date, Defendant WELCOMELAXMI LLC, and counsel Frank A. Weiser, jointly and severally, shall pay discovery sanctions in the total sum of \$5,240.00 to PLAINTIFF Rosa Vargas, the Court finding the absence of substantial justification and late admissions responses. (E.g., Code Civ. Proc., § 2023.030.)

Plaintiff to give notice.

I.

BACKGROUND

On February 5, 2025, ROSA VARGAS (Plaintiff) filed a Complaint against WELCOMELAXMI LLC and RIKESH PATEL (Defendants), listing Causes of Action for:

1)
WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY;

2)

DISABILITY DISCRIMINATION (GOV. CODE §12940(A));

3)

DISABILITY HARASSMENT (GOV. CODE §12940(J) AND (K));

4)

FAILURE TO ACCOMMODATE (GOV. CODE §12940(M));

5)

FAILURE TO ENGAGE IN INTERACTIVE PROCESS (GOV. CODE §12940(N));

6)

RETALIATION IN VIOLATION OF THE FAIR EMPLOYMENT & HOUSING ACT (GOV. CODE §12940(H));

7)

FAILURE TO PREVENT, INVESTIGATE, AND/OR REMEDY UNLAWFUL HARASSMENT, DISCRIMINATION AND RETALIATION (GOV. CODE §12940(J) & (K));

8)

FAILURE TO PAY WAGES (CALIFORNIA LABOR CODE §§ 201, 203);

9)

NEGLIGENT SUPERVISION;

10)

UNFAIR BUSINESS PRACTICES;

11)

DEFAMATION;

12)

INTENTIONAL INFLICTIONS OF EMOTIONAL DISTRESS; AND

13)

DECLARATORY RELIEF.

Plaintiff alleges that Defendants

wrongfully terminated her employment as housekeeper, because of her medical condition and disabilities, after an on-the-job knee injury caused by slipping and falling in a bathtub.

On July 13, 2026, Plaintiff filed the four discovery motions, on grounds that Defendant failed to provide any responses. Plaintiff also requests monetary sanctions against Defendant and counsel.

The Court's official docket shows that Defendant has not opposed these matters, except to file, on August 18, 2026, a notice of serving admission responses.

II.

LEGAL STANDARD

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (*Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., §§ 2030.290 [compelling initial interrogatory responses], 2031.300 [compelling initial document requests].) A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (*Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (*Deck v. Devs. Inv. Co.* (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1435.)

“Under Code of Civil

Procedure section 2033.280, it is mandatory that the court impose a monetary sanction on the party or attorney whose failure to serve a timely response to a request for admission necessitates a motion to compel responses....” (*Stover v. Bruntz* (2017) 12 Cal.App.5th

19, 31–32. Accord *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 635.)

III.

ANALYSIS

Plaintiff reports that

Defendant failed to respond to the subject discovery requests served on April 14, 2026.

The failure to file a

proper and timely opposition in trial court creates a waiver of the issues on any appeal. (*Bell v. Am. Title Ins. Co.*

(1991) 226 Cal.App.3d 1589, 1602; *Cabrini*

Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693

[appellate court will not consider any erroneous rulings where an objection could have been made].) “A failure to oppose a motion may be deemed a consent to the granting of the motion.” (Cal. Rules of Court, rule 8.54(c).)

The burden of justifying

any failure to respond to discovery requests remains at all times with the responding party. (E.g., *Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.)

Here, no Opposition has

been filed to justify the reported failures to provide discovery responses.

And the recent admissions

responses, in substantial compliance, support denying that Motion while imposing monetary sanctions.

IV.

CONCLUSION

Therefore, the Court grants

all three unopposed Motions and only imposes sanctions as to the admissions Motion.